

25NWCV03956 25NWCV03956

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#13

MARQUEZ v. TACOS EL FOGON GRILL, INC., ET AL.

CASE NO.: 25NWCV03956

HEARING: Thursday, September
3, 2026, at 9:30 AM

Defendants TACOS EL FOGON GRILL, INC.'s and ANGEL RIZO's, as
trustee of THE ALONDRA REVOCABLE LIVING TRUST DATED DECEMBER 15, 2023, Demurrer
is OVERRULED.

Defendants to Answer within 10 days.

Moving party to give notice.

Background

On November 6, 2025, Plaintiff LUIS MARQUEZ ("Plaintiff")
filed this action against Defendants TACOS EL FOGON GRILL, INC.; ANGEL RIZO, as
trustee of THE ALONDRA REVOCABLE LIVING TRUST DATED DECEMBER 15, 2023; and DOES
1-10, inclusive ("Defendants").

Plaintiff asserts one cause of action for Violations of the
Unruh Civil Rights Act.

Plaintiff alleges, "Due to architectural barriers in

violation of one or more of the ADA standards for accessible design, and the interior conditions of the Business at the Property violate the ADA and UCRA, are inaccessible, and denied Plaintiff's right and entitlement to full and equal access." (Complaint ¶ 26.)

On January 13, 2026, Defendants filed the instant Demurrer arguing that Plaintiff's Complaint fails to state facts sufficient to constitute a cause of action.

Meet and Confer

Defendants submitted a meet and confer declaration wherein Joel Farkas attests he attempted to contact Plaintiff's Counsel for a live meet and confer. (Farkas Decl., ¶¶ 2-3, 5-8.) Although a live meet and confer did not occur, the Court finds that Defendants substantially complied with CCP §§ 430.41 and 435.5(a). Further, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (See CCP § 430.41(a)(4).)

Unruh Civil Rights Act

The Unruh Civil Rights Act holds, "All persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever." (Civ. Code, § 51(b).) "No business establishment of any kind whatsoever shall discriminate against . . . any person in this state on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51 . . . because the person is perceived to have one or more of those characteristics, or because the person is associated with a person who has, or is perceived to have, any of those characteristics." (Id., § 51.5(a).)

A cause of action under the Unruh Civil Rights Act consists of the following elements: (1) the defendant denied the plaintiff access to full and equal accommodations, advantages, facilities, privileges, or services in a business establishment; (2) the plaintiff's membership in a protected class was a motivating factor for this denial; and (3) defendants' wrongful conduct caused plaintiff to suffer injury, damage, loss or harm.

(See Wilkins-Jones v. County of Alameda (2012) 859 F.Supp.2d 1039, 1048.)

Except for ADA claims, “a plaintiff seeking to establish a case under the Unruh Act must plead and prove intentional discrimination in public accommodations in violation of the terms of the Act.” Harris v. Capital Growth Investors XIV (1991) 52 Cal.3d 1142, 1175 [superseded by statute on other grounds as explained in Munson v. Del Taco, Inc. (2009) 46 Cal.4th 661].

The Court finds Plaintiff adequately pleads a claim under the Unruh Civil Rights Act.

Defendants first argue Plaintiff’s ADA violation allegations are insufficient. Plaintiff alleges that:

“On the Date of Visit, instead of having architectural barrier free facilities for patrons with disabilities, the subject property contained ADA violations as follows: (1) A lack of accessible dining surfaces provided (Section 226.1) and

(2) Due to architectural barriers in violation of one or more of the ADA standards for accessible design, and the interior conditions of the Business at the Property violate the ADA and UCRA, are inaccessible, and denied Plaintiff’s right and entitlement to full and equal access.”

(Complaint ¶¶ 24-26.)

Section 226.1 holds, “Where dining surfaces are provided for the consumption of food or drink, at least 5 percent of the seating spaces and standing spaces at the dining surfaces shall comply with 902. In addition, where work surfaces are provided for use by other than employees, at least 5 percent shall comply with 902.” (Section 226.1.) ADA section 902.4.2 holds that, “The tops of tables and counters shall be 26 inches (660 mm) minimum and 30 inches (760 mm) maximum above the finish floor or ground.” (Id.)

Plaintiff’s Complaint sufficiently alleges that Defendants failed to provide dining surfaces in compliance with the ADA. It is unnecessary at the pleading stage for Plaintiff to specify the exact dimensions or identify each individual inaccessible surface. By alleging that the dining surfaces were

noncompliant with Section 226.1 (and by extension Section 902) of the ADA Standards for Accessible Design, Plaintiff provided Defendants with adequate notice of the nature of the alleged violation. The ADA's requirements for accessible dining surfaces are publicly available and well-established, and it is insufficient for Defendants to feign innocence.

Similarly, Defendants "Reservation of Rights" argument is unavailing. Plaintiff alleged Defendants' dining surfaces were noncompliant, whether a future site inspection may reveal further violations is irrelevant. Whether there are any further violations would only add to Plaintiff's claim, they are not necessary to establish Plaintiff's claim.

Defendants next argue Plaintiff cannot establish he was "denied full and equal access." Defendants point to Plaintiff's allegations that Plaintiff (1) personally visited the business and (2) purchased items sold at the business. (Complaint ¶¶ 19-20.) Defendants' argument is inapposite. Plaintiff is not arguing that Defendants prohibited him from purchasing items, instead Plaintiff is arguing Defendants failed to provide accessible dining surfaces. (Complaint ¶ 25.) Plaintiff sufficiently pleads Defendants failed to provide full and equal access because of architectural barriers.

Defendants further argue Plaintiff's Complaint does not allege how "inaccessible dining surfaces would necessarily prevent a wheelchair user from accessing dining surfaces."

The Complaint sufficiently alleges that Defendants failed to provide accessible dining surfaces as required by the ADA. Plaintiff cannot walk and needs to use a wheelchair (Complaint ¶¶ 2,5). The ADA standards exist specifically to ensure that individuals with mobility disabilities can access and use dining surfaces. It is unnecessary for Plaintiff to plead the precise way each noncompliant surface prevented use; noncompliance with the ADA standards itself constitutes a barrier to access. The Complaint's allegations of noncompliance, together with Plaintiff's need for wheelchair mobility, are sufficient.

Plaintiff also sufficiently pleads Defendants are business establishments. Plaintiff alleges, "Because Defendants ANGEL RIZO, as trustee of THE ALONDRA REVOCABLE LIVING TRUST DATED DECEMBER 15, 2023, and DOES 1-3, own, operate and/or lease the Property, they are responsible for the violations of the ADA and UCRA that exist at the Property and/or the Business." (Complaint ¶ 27.)

“Plaintiff is informed and believes and thereon alleges that Defendants TACOS EL FOGON GRILL, INC., a California corporation, and DOES 4-6, owned, operated, and controlled the Business located at the Property on Date of Visit.” (Complaint ¶ 8.)

The term “business establishment” must be interpreted “in the broadest sense reasonably possible.” See Doe v. California Lutheran High School Association (2009) 170 Cal.App.4th 828, 837; Curran v. Mount Diablo Council of the Boy Scouts (1998) 17 Cal.4th 670, 696. “An organization has sufficient businesslike attributes to qualify as a business establishment when it appears to have been operating in a capacity that is the functional equivalent of a commercial enterprise.” Carter v. City of Los Angeles (2014) 224 Cal.App.4th 808, 825.

Plaintiff’s allegations establish Defendants owned and operated the Subject Property.

Defendants’ argument that Plaintiff’s Complaint is constrained by California Civil Code §§ 55.54 and 55 is similarly unavailing. California Civil Code §§ 55.54 and 55.55 establish certain procedures that defendants may utilize in high-frequency litigant accessibility cases, such as requesting an early evaluation conference or a stay of proceedings. However, there is no evidence that Defendants have invoked any of these procedures in this case. As such, the provisions of § 55.54 are inapplicable to the present demurrer, which concerns only the sufficiency of Plaintiff’s Complaint.

Lastly, Plaintiff’s prayer for relief is sufficient because California Civil Code § 52 expressly authorizes statutory damages of not less than \$4,000 per occurrence and the recovery of reasonable attorney fees for prevailing plaintiffs. Plaintiff specifically requests these remedies in accordance with California Civil Code § 52. (Prayer ¶¶ 5-7.)

Conclusion

Defendants’ Demurrer is OVERRULED. Defendants to Answer within 10 days.